

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Aiyanna Milligan	Team: Squad #05	CCRB Case #: 201606290	☒ Force	☐ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Tuesday, 07/19/2016 4:45 PM	Location of Incident: East 151st Street and Courtlandt Avenue	18 Mo. SOL 1/19/2018	Precinct: 40		
Date/Time CV Reported Wed, 07/20/2016 7:52 PM	CV Reported At: CCRB	How CV Reported: On-line website	Date/Time Received at CCRB Wed, 07/20/2016 7:52 PM		

Complainant/Victim	Type	Home Address

Witness(es)	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POF Carla Dinome	05798	953264	PSA 7
2. POM Yahkeem White	11719	948604	PSA 7
3. POM Michael Pando	17640	952087	PSA 7
4. POM Juan Pinero	00895	953256	PSA 7

Officer(s)	Allegation	Investigator Recommendation
A . POM Yahkeem White	Force: Police Officer Yahkeem White used physical force against § 87(2)(b)	A . Unsubstantiated
B . POM Yahkeem White	Abuse: Police Officer Yahkeem White stopped § 87(2)(b)	B . Substantiated
C . POM Yahkeem White	Abuse: Police Officer Yahkeem White frisked § 87(2)(b)	C . Unsubstantiated
D . POM Yahkeem White	Abuse: Police Officer Yahkeem White searched § 87(2)(b)	D . Unsubstantiated
E . POF Carla Dinome	Abuse: Police Officer Carla Dinome frisked § 87(2)(b)	E . Unsubstantiated
F . POF Carla Dinome	Abuse: Police Officer Carla Dinome searched § 87(2)(b)	F . Unsubstantiated
§ 87(4-b) § 87(2)(g)		

Case Summary

On July 20, 2016, § 87(2)(b) filed this complaint with the Civilian Complaint Review Board (CCRB) via the on-line website.

On July 19, 2016, at approximately 4:45 p.m., § 87(2)(b) sat in a 2013 white Dodge Avenger with her friend, § 87(2)(b) the owner of the vehicle, and waited for her fiancé, § 87(2)(b) who had an appointment at § 87(2)(b). When § 87(2)(b) exited the health center, she approached § 87(2)(b) vehicle, and § 87(2)(b) passed § 87(2)(b) a cigarette from inside of the car. An unidentified female individual, who § 87(2)(b) believed worked at the health center, stood outside of it and spoke to § 87(2)(b). § 87(2)(b) exited § 87(2)(b) vehicle, § 87(2)(b) gave § 87(2)(b) a five dollar bill, and § 87(2)(b) began to walk on Courtlandt Avenue from East 150th Street towards East 151st Street towards a corner store with the money in her right hand. § 87(2)(b) heard, “Excuse me miss,” twice from behind, when she was near the entrance of the corner store. § 87(2)(b) did not turn around and continued to walk. As § 87(2)(b) was about to enter the store, someone grabbed her right hand from behind, twisted her wrist, pried open her clenched hand, and removed the money from it (**Allegation A**). When § 87(2)(b) turned around, she observed a male individual, later identified during the incident as PO Yahkeem White of PSA 7. § 87(2)(b) asked what the problem was and what was going on. PO White did not answer, and instead, held § 87(2)(b) in place, while she repeated her inquiry (**Allegation B**). Three other officers, later identified as PO Carla Dinome, PO Juan Pinero, and PO Michael Pando, all of PSA 7, exited an unmarked van which § 87(2)(b) passed as she walked to the corner store. PO White allegedly began to pat § 87(2)(b) down and lifted § 87(2)(b)'s shirt (**Allegation C** and **Allegation D**). PO White did not remove any items from § 87(2)(b)'s pockets. PO Dinome approached and continued the alleged frisk of § 87(2)(b) (**Allegation E**). § 87(2)(b) alleged PO Dinome took her sunglasses out of her bottom, right pocket, inspected them, and put them back (**Allegation F**). PO Dinome, PO Pinero, and PO Pando walked off in the direction of East 150th Street, towards an empty lot. When they returned, approximately thirty to forty-five seconds later, § 87(2)(b) noticed PO Dinome held a small, brown object, approximately half an inch in length, which she then proceeded to sniff. § 87(2)(b) had not seen the object before, but believed it may have been a “marijuana clip.” PO White immediately placed § 87(2)(b) in handcuffs. At this point, § 87(2)(b) could see § 87(2)(b) in front of the health center, and called out to her. § 87(2)(b) ran down the block and § 87(2)(b) followed shortly thereafter. When § 87(2)(b) reached § 87(2)(b) she stated that her § 87(2)(b) worked in Corrections, showed a PBA card and asked what was going on. PO White took the handcuffs off, and the remaining officers walked off. § 87(2)(b) later learned that PO White told § 87(2)(b) that it looked as if she sold contraband to § 87(2)(b). PO White then got into the unmarked van and drove away. § 87(2)(b) was not issued a summons or arrested.

There is no video footage of the incident. Fieldwork was conducted near the incident location in an attempt to obtain video footage that may have captured the incident. A video preservation letter and a subpoena was issued to § 87(2)(b), however, as of the date of this report, § 87(2)(b) has not responded to numerous attempts to make arrangements to acquire footage from the date of the incident. Numerous attempts to contact § 87(2)(b) were made between July

25, 2016 and August 25, 2016, however the individual who answered the phone repeatedly terminated the call prematurely.

Mediation, Civil and Criminal Histories

- Mediation was offered to every identified victim in this case, namely § 87(2)(b) [REDACTED] declined mediation and opted for an investigation § 87(2)(b) [REDACTED]
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)] [REDACTED]
- A Notice of Claim request was submitted on September 13, 2016, in regards to the incident and, as of September 20, 2016, there were negative results for any notice of claim filed by § 87(2)(b) [REDACTED]

Civilian and Officer CCRB Histories

- This is the first CCRB complaint filed by § 87(2)(b) [REDACTED]
- PO White has been a member of the NYPD for six years and has had eleven other CCRB allegations pleaded against him in six cases. In CCRB Case 201207175, the Board substantiated and recommended charges for stop and frisk allegations. The NYPD dispositions were not guilty and guilty, respectively, and the penalty for each allegation was instruction.
 - Three stop allegations were pleaded against PO White, one of which was substantiated, one of which was closed as complainant unavailable, and one of which was closed as complainant uncooperative.
 - § 87(4-b) § 87(2)(g) [REDACTED]
- PO Dinome has been a member of the NYPD for four years and has had one other CCRB allegation pleaded against her in one case. The disposition of PO Dinome's other CCRB allegation is still pending.
- PO Pinero has been a member of the NYPD for four years and this is the first CCRB allegation pleaded against him.
- PO Pando has been a member of the NYPD for four years and has had three other CCRB allegations pleaded against him in one case. None of PO Pando's prior CCRB allegations were substantiated § 87(2)(g) [REDACTED]

Findings and Recommendations

Allegations not pleaded

- **Abuse of Authority:** "Stop" allegations are not being pleaded against PO Dinome, PO Pinero, and PO Pando because during PO White's interview he acknowledged that he was the operator, as well as the one who initiated the approach of § 87(2)(b) [REDACTED] and to his knowledge, no one else observed the hand-to-hand transaction he believed he observed (Board Review 01)
- § 87(4-b), § 87(2)(g) [REDACTED]

§ 87(4-b), § 87(2)(g)

Allegation A - Force: Police Officer Yahkeem White used physical force against § 87(2)(b)

§ 87(2)(b) testified that as she was about to enter the corner store, PO White grabbed her right hand from behind, twisted her wrist, pried open her clenched hand, and removed the money from it. Later on, § 87(2)(b) noted swelling and stiffness in her right hand (Board Review 02). § 87(2)(b) testified that § 87(2)(b) complained of a wrist injury sustained when PO White grabbed § 87(2)(b)'s wrist shortly before he removed the money from her hand. On the same day of the incident, in the car, § 87(2)(b) mentioned it was sore, but the pain did not really set in until the next morning (Board Review 03). § 87(2)(b) testified that § 87(2)(b) told her that PO White grabbed her arm, the one with the hand that held the \$5 it, twisted it upwards, and then tried to remove what was in her hand (Board Review 04).

PO White testified that § 87(2)(b) was facing him as he approached her, he asked what she had in her right hand, which turned out to be a five-dollar bill, and explained why she was stopped. PO White stated that the first time he made physical contact with § 87(2)(b) was when he placed her in handcuffs (Board Review 01). PO Dinome did not remember anyone making physical contact with § 87(2)(b) how PO White stopped § 87(2)(b) and that she did not see any officer use any kind of force against § 87(2)(b) (Board Review 05). PO Pinero did not see how PO White stopped § 87(2)(b) and did not recall seeing PO White make any physical contact with § 87(2)(b) (Board Review 06). PO Pando did not recall the incident (Board Review 07).

During § 87(2)(b)'s interview, which took place eight days after the incident, she held her hands up with her palms facing towards her, and the back of her hands faced towards the undersigned and Investigator Butler. Investigator Butler verbally noted swelling in § 87(2)(b)'s right hand/wrist region (Board Review 02 and Board Review 08). The undersigned concurred with his observation.

§ 87(2)(g)

§ 87(2)(g)

It is therefore recommended that **Allegation A** be closed as **Unsubstantiated**.

Allegation B - Abuse of Authority: Police Officer Yahkeem White stopped § 87(2)(b)

It is undisputed that PO White stopped § 87(2)(b)

§ 87(2)(b) testified that she passed § 87(2)(b) a cigarette from inside of § 87(2)(b) car. Later on, as § 87(2)(b) was about to enter the corner store, PO White grabbed her from behind, and when she asked what the problem was and what was going on, he told her, "Just relax, just calm down," and held her in place. Shortly after, § 87(2)(b) saw PO Dinome and two male officers return from an empty lot, near the corner store, with a "marijuana clip," and

she denied that it was hers. § 87(2)(b) did not have any contraband, drugs or alcohol on her at the time of the incident, and was not under the influence of any drugs or alcohol at the time of the incident (Board Review 02).

§ 87(2)(b) testified that § 87(2)(b) picked up an engagement ring that used to belong to her mother from a pawn shop, which was given to her inside of a plastic bag. § 87(2)(b) removed the ring from the plastic bag to place it on her necklace. § 87(2)(b) did not have drugs or contraband, was not under the influence of drugs or alcohol, and neither was § 87(2)(b) (Board Review 03).

§ 87(2)(b) testified that she handed § 87(2)(b) mother's diamond engagement ring to § 87(2)(b) who stood outside, from the inside of her car. As § 87(2)(b) ran to § 87(2)(b) she noticed PO Dinome and a male officer going in the direction of an empty, grassy lot. PO Dinome held a brown object in her hand which she threw into the lot. § 87(2)(b) later told § 87(2)(b) that she repeatedly asked PO White why he stopped her, but did not get an answer from him. § 87(2)(b) stated she did not have drugs or alcohol in her possession at the time of the incident, and was not under the influence of drugs or alcohol at the time of the incident (Board Review 04).

PO White testified that as he drove northbound on Courtlandt Avenue conducting a patrol, from approximately two feet away, he observed a female, § 87(2)(b) lean into the driver's side of a vehicle and exchange U.S. currency for a small object with another female inside of the car. PO White described the vehicle as a four-door, possibly silver, sedan. PO White stated the unknown object he referenced in his memo book could have been a marijuana cigarette. PO White described the object as small, brown paper, which contained a leafy green object; marijuana. To PO White's knowledge, no one else observed what he observed, but he called it out, and he was the one who initiated the approach. PO White stated that once § 87(2)(b) noticed his RMP, she leaned out of the vehicle and proceeded to walk northbound on Courtlandt Avenue. Once § 87(2)(b) saw PO White pull the RMP over to stop at the corner, § 87(2)(b) "hugged" towards a parked car, stopped for a second, and then continued to walk northbound. PO White's intention upon exiting the RMP was to affect an arrest and he expressed this to the rest of the officers in the RMP. PO White also stated that PO Pinero recovered a marijuana cigarette (Board Review 01 and Board Review 10).

PO Dinome did not recall who drove the RMP, and while it was in motion at "patrol speed", she did not observe anything that went on outside because she looked out of the window that was on the opposite side of the street that § 87(2)(b) was on. PO Dinome did not hear PO White announce anything that he saw. PO Dinome did not recall smelling marijuana or know if anyone ever recovered a marijuana cigarette during the incident. PO Dinome was not told by any officer that a marijuana cigarette was found (Board Review 05).

PO Pinero estimated that PO Pando drove approximately five to ten miles per hour and he did not believe PO White announced anything before the RMP came to a stop. PO Pinero did not observe anything going on outside before the RMP stopped because he was not paying attention; at the time, he was using his phone instead of looking outside. PO White exited the RMP and immediately approached a female, § 87(2)(b) on the sidewalk who was walking to the corner. PO Pinero did not know why PO White stopped § 87(2)(b) but believed he must have made an observation that led him to do so because he went straight to her. PO White motioned to the side of a parked car for PO Pinero to inspect and when he got to the area, he smelled marijuana right away and recovered a lit marijuana cigarette on the

sidewalk. PO Pinero described it as brown and approximately 1.5 to 2 inches long (Board Review 06). PO Pando testified that he did not recall the incident (Board Review 07).

Reasonable suspicion of criminality is required for a stop, *People v. DeBour*, 40 N.Y.2d 201 (1976) (Board Review 16). A police officer may stop a person when he/she reasonably suspects that the person has committed, is committing, or is about to commit a felony or misdemeanor offense, Subsection 1 § 140.50. of Criminal Procedure Law (Board Review 17). The officer may also demand the person's name, address, and an explanation of conduct. Patrol Guide Procedure 212-11 states a police officer with individualized reasonable suspicion may ask questions and detain a person while an expeditious investigation is conducted to determine if there is probable cause to arrest the person. The length of time the suspect is detained for must be reasonably related to the facts that initially justified the stop or any that are discovered during the stop. The suspect must be released immediately after the investigation is completed if probable cause to arrest does not exist and a Stop, Question and Frisk Report Worksheet must be completed (Board Review 15).

§ 87(2)(g)

§ 87(2)(b). In the memo book entry that corresponded to the incident, PO White stated, "1HF stopped appeared to be hand to hand transaction...exchange of money w/unknown object. PO Pinero retrieved marijuana cigarette from ground..." PO White did not go on to describe the unknown object or state anything along the line of the unknown object [most likely] being marijuana in his memo book. PO White testified that he saw § 87(2)(b) exchange U.S. Currency for a small object. When questioned during his interview, PO White stated the unknown object he referenced in his memo book could have been a marijuana cigarette and went on to describe the object as small, brown paper, which contained a leafy green object; marijuana. In both instances, PO White indicates that it could have been [a] marijuana [cigarette] that he saw; he does not state with certainty what the object he saw was.

PO White stated he saw this unknown object from an approximate distance of two feet away as he drove. NYCMap indicates that Courtlandt Avenue is a one-way street and traffic is northbound between East 150th Street and East 151st Street. According to PO White, § 87(2)(b) leaned into the driver's side of § 87(2)(b) car; the side closest to the sidewalk. § 87(2)(b) and § 87(2)(b) corroborated § 87(2)(b)'s testimony that § 87(2)(b) stood outside of § 87(2)(b) car, on the driver's side, when she was handed money. § 87(2)(g)

None of the other officers could corroborate seeing the exchange detailed by PO White or § 87(2)(b)'s actions before the stop and therefore could not attest to the circumstances that gave rise to PO White's suspicion. In addition, the marijuana cigarette was found nearby the location of § 87(2)(b)'s stop and not on her. PO White testified that he saw § 87(2)(b) move toward a car, pause, and continue after having made eye contact with him, however he did not articulate what he believed she did when she paused. § 87(2)(g)

§ 87(2)(g)

It is therefore recommended that **Allegation B** be closed as **Substantiated**.

Allegation C - Abuse of Authority: Police Officer Yahkeem White frisked § 87(2)(b)

Allegation D - Abuse of Authority: Police Officer Yahkeem White searched § 87(2)(b)

§ 87(2)(b) testified that PO White began to pat her down shortly after detaining her, but before he handcuffed her. § 87(2)(b) automatically put her hands up. § 87(2)(b) wore cargo pants that day and it had six pockets. PO White entered § 87(2)(b)'s right and left upper pockets, lifted her shirt to reveal the empty belt clip on the right side of her hip, but did not remove any items from her pockets (Board Review 02).

PO White testified that he did not recall whether § 87(2)(b) was searched or pat down by any officers and the first time he made physical contact with § 87(2)(b) was when he handcuffed her (Board Review 01). PO Dinome testified that she did not remember anyone else making any physical contact with § 87(2)(b) anyone else frisking § 87(2)(b) or anyone else searching § 87(2)(b) (Board Review 05). PO Pinero testified that he did not recall seeing PO White make any physical contact with § 87(2)(b) (Board Review 06). PO Pando testified that he did not recall the incident (Board Review 07).

§ 87(2)(g) It is therefore recommended that **Allegation C** and **Allegation D** be closed as **Unsubstantiated**.

Allegation E - Abuse of Authority: Police Officer Carla Dinome frisked § 87(2)(b)

Allegation F - Abuse of Authority: Police Officer Carla Dinome searched § 87(2)(b)

§ 87(2)(b) testified that PO Dinome patted § 87(2)(b) down; she felt around § 87(2)(b)'s lower and back pockets, around her waist, under her bust, and down her back, but did not go under § 87(2)(b)'s clothing. PO Dinome then took § 87(2)(b)'s sunglasses out, inspected them, and placed them back (Board Review 02).

PO Dinome testified that she did not remember making any physical contact with § 87(2)(b) frisking § 87(2)(b) or searching § 87(2)(b) (Board Review 05). PO White testified that he did not recall what PO Dinome did, or where she was during the incident once she exited the vehicle. PO White did not recall whether § 87(2)(b) was searched or frisked by any officers (Board Review 01). PO Pinero testified that he could recall whether PO Dinome even exited the RMP (Board Review 06). PO Pando testified that he did not recall the incident or even working with anyone besides PO White on the date of the incident (Board Review 07).

§ 87(2)(g) It is therefore recommended that **Allegation E** and **Allegation F** be closed as **Unsubstantiated**.

§ 87(2)(g), § 87(4-b)

§ 87(4-b), § 87(2)(g)

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